

Merced DIP Lender, LLC, alleging that those entities are responsible for the nonpayment giving rise to the subcontractor claims. (Boyer Memo 8:11-21)

The opposition by Merced DIP Lender, LLC does not dispute this and opposes the consolidation based on the procedural posture in 24CV-06543. While consolidation may disrupt ongoing negotiations in that matter or may delay any dispositive motion that may be filed by Merced DIP Lender, LLC, it does not outright extinguish those efforts, nor do those efforts outweigh the efficiencies gained through consolidation. The purpose of consolidation is to promote overall convenience and judicial economy, particularly where there is a common question of law and fact, as there is here.

The opposition requests that any consolidation either exclude 24CV-06543 or limit consolidation for discovery purposes only.

The court denies both requests. To allow 24CV-06543 to proceed separately would not only create substantial inefficiencies for the court and parties, but it could also result in inconsistent rulings. Further, the court is not aware of any authority for consolidation only for purposes of discovery. While the parties are free to stipulate that all discovery in any of the related cases be deemed to have been propounded and answered in all of the cases, case law only recognizes two types of consolidation: that for purposes of trial only and that for all purposes. (See *Hamilton v. Asbestos Corp., Ltd.* (2000) 22 Cal.4th 1127, 1147 [Under the statute and the case law, there are thus two types of consolidation: a consolidation for purposes of trial only . . .; and a complete consolidation or consolidation for all purposes . . .].)

Accordingly, the motion to consolidate for all purposes is granted.

24CV-04539 is to be designated as the master file. All subsequent documents must be filed only in 24CV-04539. (Rule of Ct. 3.350)

Case Management Conference

**Appearance required.**

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25CV-05206                      Catalina Torres, et al. vs Allstate Insurance Company

Motion to Compel Plaintiffs' Further Responses to First Set of Requests for Production & Request for Monetary Sanctions in the Amount Of \$1,260.00

**Defendant's motion to compel further responses to the first set of requests for production is GRANTED.**

Plaintiffs' responses do not comply with Code of Civil Procedure section 2031.220. Any statement of compliance must state that it will be in full or in part and that all documents that are in the possession, custody, or control will be included in the production. (See Code Civ. Proc. § 2031.220.)

If Plaintiff are unable to fully comply, then they must state their inability to comply in accordance with Code of Civil Procedure section 2031.230.